

25STCV36594 25STCV36594

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Case Number: 25STCV36594 Hearing Date: July 15, 2026 Dept: N

TENTATIVE RULING

Defendants Sliver VR Technologies, Inc., Theta Labs, Inc., and Mitchell Liu's Motion to Transfer Venue to Santa Clara County is GRANTED.

Pursuant to Code of Civil Procedure section 399, all required costs and fees of transfer shall be paid by Plaintiff Andrea Berry and Plaintiff's counsel within five (5) days after service of notice of the transfer order.

Defendants Sliver VR Technologies, Inc., Theta Labs, Inc., and Mitchell Liu to give notice.

Plaintiff Andrea Berry ("Plaintiff") alleges in the complaint that venue is proper in Los Angeles because the acts giving rise to her claims occurred in Los Angeles, and she worked in Los Angeles County. (Compl. ¶ 9.) Defendants' evidence shows that all Defendants are residents of Santa Clara County. (Mot., Liu Decl. ¶¶ 5-7.)

Moreover, the present action is one properly classified as a "mixed action." "In a mixed action, a plaintiff alleges two or more causes of action each of which is governed by a different venue statute. Or, two or more defendants are named who are subject to different venue standards." (Brown v. Superior Court(1984) 37 Cal.3d 477, 488.) "In cases with mixed causes of action, a motion for change of venue must be granted on the entire complaint if the defendant is entitled to a change of venue on any one cause of action." (Ibid.)

Plaintiff has alleged three causes of action under the Fair Employment and Housing Act (FEHA), and Code of Civil Procedure section 12965, subdivision (a)(4), states that such claims "shall be brought in a county in which the department has an office, in a county in which unlawful practices are alleged to have been committed, in the county in which records relevant to the alleged unlawful practices are maintained and administered, in the county in which the person claiming to be aggrieved would have worked or would have had access to public accommodation, but for the alleged unlawful practices, in the county of the defendant's residence or principal office, or, if the civil action includes class or group allegations on behalf of the department, in any county in the state." Plaintiff alleges that she worked remotely in Los Angeles, even though Defendants were based in Santa Clara, such that Los Angeles is the proper venue. The FEHA claims, however, are based on conduct that occurred via remote communication, in Las Vegas, and in Texas. (Compl. ¶¶ 83-97.) Insofar as Plaintiff argues that Defendant Liu may be personally liable for the FEHA claims, she has not alleged those claims against him, focusing instead on "corporate defendants," which the Court must assume does not include an individual defendant like Liu.

Plaintiff chose to bring this action against both corporate defendants and an individual defendant, and it is well established that "when a plaintiff brings an action against several defendants, both individual and corporate, in a county in which none of the defendants reside, an individual defendant has the right to change venue to the county of his or her residence," even if

the corporate defendant may be sued elsewhere. (Brown v. Superior Court, supra, 37 Cal.3d at p. 484, fn. 6.) The Court finds that Santa Clara was the proper venue for the FEHA claims given Defendants' residence, and Plaintiff has not shown a basis to keep this action in Los Angeles. Further, Defendants' motion papers make clear that 31 out of 37 employees of the corporate entities reside in Santa Clara (Mot., Liu Decl. ¶ 17), and the documents are located in Alameda County (Mot., Liu Decl. ¶ 11). For these reasons, the Court finds it is proper to transfer this action to Santa Clara County. Accordingly, Defendants Sliver VR Technologies, Inc., Theta Labs, Inc., and Mitchell Liu's Motion to Transfer Venue to Santa Clara County is GRANTED. Pursuant to Code of Civil Procedure section 399, all required costs and fees of transfer shall be paid by Plaintiff Andrea Berry and Plaintiff's counsel within five (5) days after service of notice of the transfer order.